

23STCV08788 23STCV08788

County: los-angeles

Division: Civil Law and Motion

Department: 316

Hearing date: 2026-09-02

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C316%2C09%2F02%2F2026

Source SHA-256: 6e01605940ea4f3777982ce53cc158fbd04f4b20442b8ed90f467e5fbc69d8cf

Case Number: 23STCV08788 Hearing Date: September 2, 2026 Dept: 316

BACKGROUND

On December 27, 2024,

Plaintiff filed his fourth amended complaint against Defendants Wire Industries, Inc., Zachary Doctor, and Guy Dotan. The operative complaint alleges one cause of action stemming from the facts alleged above.

On July 14, 2026,

Defendant Wire Industries, Inc. filed three separate Motions to Compel Plaintiff's Further Discovery Responses.

On July 20, 2026,

Defendant filed another Motion to Compel Plaintiff's Further Discovery Responses.

On August 25, 2026,

Plaintiff filed four oppositions, one for each corresponding motion. Plaintiff's oppositions were due by August 20, 2026. (Code Civ. Proc., § 1005, subd. (b).) The Court will nevertheless consider Plaintiff's oppositions.

Defendant filed a

consolidated reply on August 31, 2026, which the Court will also consider.

TENTATIVE RULING

Defendant's Motions to

Compel Plaintiff's Further Discovery Responses are GRANTED. Defendant is awarded sanctions if the amount of \$5,805 against Plaintiff and Plaintiff's

counsel, jointly and severally.

Plaintiff must serve verified, code-compliant and substantive responses to each of Defendant's discovery requests at issue in the motions within 15 days of the Court's order. Plaintiff is also ordered to produce all non-privileged documents responsive to Defendant's document requests that are within his custody, control or possession within 15 days of the Court's order.

Plaintiff and Plaintiff's counsel are ordered to pay the sanctions award of \$5,805 to Defendant's counsel within 30 days of the Court's order.

LEGAL STANDARD

I.

Requests
for Production of Documents

Under Code of Civil

Procedure section 2031.310, the Court may order a responding party to serve a further response to a request for production of documents when the Court finds that any of the following apply: (1) a statement of compliance with the demand is incomplete; (2) a representation of inability to comply is inadequate, incomplete, or evasive; (3) an objection in the response is without merit or too general.

A motion to compel further response to requests for production "shall set forth specific facts showing good cause justifying the discovery sought by the inspection demand." (Code Civ. Proc., § 2031.310, subd. (b)(1).) To establish 'good cause,' the burden is on the moving party to show both: (1) relevance to the subject matter (e.g., how the information in the documents would tend to prove or disprove some issue in the case); and (2) specific facts justifying discovery (e.g., why such information is necessary for trial preparation or to prevent surprise at trial). (See *Glenfed Development Corp. v. Superior Court* (1997) 53 Cal.App.4th 1113, 1117.) If 'good cause' is shown by the moving party, the burden is then on the responding party to justify any objections made to document disclosure. (See *Coy v. Superior Court* (1962) 58 Cal.2d 210, 220-21.)

A motion to compel further responses must be accompanied by a meet and confer declaration. (See Code Civ. Proc., § 2031.310, subd. (b)(2).)

Code of Civil Procedure

section 2031.310, subdivision (h) authorizes a mandatory issuance of sanctions against “any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”

II.

Interrogatories

Code of Civil Procedure

Section 2030.220, states:

(a) Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits.

(b) If an interrogatory cannot be answered completely, it shall be answered to the extent possible.

(c) If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party.

Under Code of Civil

Procedure section 2030.300, subdivision (a), the Court may order a responding party to serve a further response to interrogatories if any of the following apply: (1) the answer to a particular interrogatory is incomplete or evasive; (2) the exercise of the option to produce documents is unwarranted or the required specification of those documents is improper or inadequate; or (3) that an objection to an interrogatory is without merit or too general.

Code of Civil Procedure

section 2030.300, subdivision (d), authorizes a mandatory issuance of sanctions against “any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”

III.

Requests

for Admissions

Under Code of Civil

Procedure section 2033.290, the Court may order a responding party to serve a further response to requests for admission when the Court finds that any of the following apply: (1) an answer to a particular request is evasive or incomplete; or (2) an objection to a particular request is without merit or too general. (See Code Civ. Proc., § 2033.290, subd.

(a).) Said motion must be filed within 45 days after service of the verified response, or the requesting party waives any right to compel further response. (See id. at subd. (c).)

Such a motion “shall be accompanied by a meet and confer declaration under Section 2016.040,” which “shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc., § 2033.290, subd. (b); § 2016.040.)

Code of Civil Procedure

section 2033.290, subdivision (d) authorizes a mandatory issuance of sanctions against “any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”

DISCUSSION

I.

Meet
and Confer

Defendant's counsel
attempted to meet and confer with Plaintiff's counsel on at least three
separate occasions. (See Beffa Decl., ¶ 2.) Despite these efforts, Plaintiff's
counsel was unresponsive. (See *ibid.*)

Given the foregoing, the meet
and confer requirement has not been satisfied. However, given Baffa's diligent
attempts to meet and confer with Plaintiff's counsel, the Court will still
consider the merits of the motions.

II.

Compelling
Further Discovery Responses

Defendant seeks to compel
Plaintiff's further response to its requests for inspection, requests for
admission, and form and special interrogatories. (See Motions, p. 1:6-8.) Defendant
contends that its requests are relevant to this matter and Plaintiff's
objections are boilerplate and frivolous. (See *id.* at p. 4:12-13.)

After evaluating
Defendant's discovery requests and Plaintiff's responses, the Court finds that
further responses are necessary. First, Plaintiff did not provide a substantive
response to any of the propounded discovery. There were no facts provided in
response to special or form interrogatories; neither an admission nor denial of
a single request for admission; and no agreement to produce any documents in
response to inspection demands. Rather, Plaintiff stated the same set of
objections to all or virtually all of the requests. The Court finds that Plaintiff's
objections are generally without merit and boilerplate. Second, Defendant's discovery
requests are relevant and seek information within the scope of discoverable
material. (See generally *Sep. Stmts.*) Many of the special interrogatories ask
for facts supporting specific allegations in the complaint. The requests for
admission track assertions Plaintiff made in the complaint and the inspection
demands are for documents that are plainly relevant such as communications
between the parties and any agreements or proposed agreements Plaintiff claims
were exchanged with Defendants. Finally, even if Plaintiff's claims of

privilege have merit, which generally it appears they do not, Plaintiff is obligated to provide those facts and documents that are not privileged in response to the requests.

For these reasons the

Court finds Plaintiff's responses to be inadequate and not compliant with the requirements of the Code of Civil Procedure and that Plaintiff's opposition lacks substantial justification.

Defendant requests

sanctions in the total amount of \$7,353 (\$645 per hour for 11.4 hours) for all four motions. (See Beffa Decl., ¶ 27.) The Court finds the rate reasonable given counsel's experience and credentials. It finds the hours to be slightly excessive given that the four motions are very similar to one another. While the Court recognizes that the separate statements are tedious, it also expects those would be prepared (at least in large part) by someone with a lower billing rate. The Court will reduce the hours to a total of 9 hours at the requested rate. Accordingly, the Court will award sanctions in the total amount of \$5,805.

Defendant also seeks a

continuance in the trial date, which is currently scheduled for October 12, 2026. The Court will not continue the trial date at this time. If Defendant continues to believe that a trial continuance is necessary when it receives the ordered discovery responses and documents, it may renew its request in a motion or ex parte application pursuant to California Rules of Court, Rule 3.1332 (b).

CONCLUSION

For the foregoing reasons,

Defendant's Motions to Compel Plaintiff's Further Discovery Responses is GRANTED. Defendant is awarded sanctions if the amount of \$5,805 against Plaintiff and Plaintiff's counsel, jointly and severally.

Plaintiff must serve verified,

code-compliant and substantive responses to each of Defendant's discovery requests at issue in the motions within 15 days of the Court's order. Plaintiff is also ordered to produce all non-privileged documents responsive to Defendant's document requests that are within his custody, control or possession within 15 days of the Court's order.

Plaintiff and Plaintiff's

counsel are ordered to pay the sanctions award of \$5,805 to Defendant's counsel within 30 days of the Court's order.